



April 26, 2024

To All Known Creditors of: Rowboat Creative, LLC
4200 West Diversey Avenue
Chicago, IL 60639

RE: Appointment of Receiver, Sale of Assets, and Liquidation of Company

Dear Creditor:

Please be advised that on February 14, 2024, Howard Samuels, Ryan Hayes and Rally Capital Advisors, LLC were appointed Receiver in the Circuit Court of Cook County, Chancery Division Case No. 2024 CH 00720 of Rowboat Creative LLC (the "Receiver"), an Illinois corporation located at 4200 West Diversey Avenue, Chicago, IL 60639 ("Rowboat" or the "Company"). The initial purpose of the Receivership was to evaluate the business as a going concern and manage the business while ownership focused on resolving their disputes. By March 21, 2024, the Receiver conveyed to the Court and to ownership the need to sell and/or liquidate the Company and petitioned the Court for authority to do so. On April 5, 2024, the Court granted the Receiver the authority to sell or liquidate Rowboat as requested.

The Process for Sale or Liquidation

Based on performance of the Company and the fact that the Company is insolvent, it is the Receiver's intent to liquidate this Company as a fiduciary of the Court and under the Court's direction and authority, and distribute the proceeds, less the costs of administration, to the Company's creditors on *pro rata* basis, less holders of priority tax and wage claims.

Events Leading to the Receivership

Originally founded in 2006, Chicago, IL-based Rowboat Creative was a creative merchandising agency offering custom screen printing, embroidery, direct-to-garment, dye sublimation, live branding, creative design, and fulfillment services. Following a dispute between Rowboat's ownership, a precipitous decline in business, and mounting debts, a Receiver was appointed to evaluate the Company to determine its sustainability as a going concern, and ultimately sell and or liquidate the Company should it be determined that the Company could not **continue as a going concern**. To this end, the Receiver vigorously marketed the Company which resulted in the presentment of an asset purchase agreement by one of the two owners of Rowboat. This agreement will be promptly reviewed by the Receiver and if agreed to by all parties, will be submitted to the Court for approval. The Receiver will keep all creditors advised of our progress.

Financial information provided to me from the Company as of, April 9, 2024, without audit or verification, indicated the following (all figures are approximate):

ASSETS		LIABILITIES	
Cash	\$ 39,281.49	General & Unsecured Debt	\$ 189,842.78
Accounts Receivable	24,138.14	Customer Deposits	5,100.00
Inventory	10,000.00	Payroll Liabilities	20,000.00
Equipment	<u>100,000.00</u>	Contingent Liabilities	172,404.81
		Receivership Expenses	<u>26,677.50</u>
Total Assets	\$173,419.63	Total Liabilities	\$414,025.09

350 North LaSalle Street
Suite 1100
Chicago IL 60654
Phone 312/645-1975
Fax 312/645-1976
www.rallyllc.com



There are approximately twelve (12) creditors, including the landlord for which Rowboat has lease obligations. Of the twelve creditors, nearly 90% of the existing creditor base have personal guarantees with ownership.

This notice has been sent to all known creditors of Rowboat Creative, including federal and state taxing authorities. **All creditors are requested to immediately execute and return to the Assignee's office the enclosed Affidavit of Claim with all supporting documentation reflecting the balance due from Rowboat Creative as of April 18, 2024.**

In the event you require additional information regarding this receivership, please do not hesitate to contact the Undersigned.

Thank you for your patience and cooperation.

Sincerely,

A handwritten signature in black ink, appearing to be "H. B. Samuels", written over a horizontal line.

Howard B. Samuels, not Individually, but Solely as the Receiver of Rowboat Creative LLC

Enclosure

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**COMBINED NOTICE OF RECEIVERSHIP
PROOF OF CLAIM AND BAR DATE NOTICE**

**RE: ROWBOAT CREATIVE LLC
4200 WEST DIVERSEY AVENUE
CHICAGO, IL 60639**

To: All Known Creditors of Rowboat Creative LLC

PLEASE TAKE NOTICE that on February 14, 2024, Howard Samuels of Rally Capital Advisors, LLC was appointed receiver (the "Receiver") of Rowboat Creative LLC ("Rowboat") pursuant to the attached order (the "Court Order"). On April 5, 2024, the court authorized the Receiver to sell and / or liquidate the assets of Rowboat.

PLEASE TAKE FURTHER NOTICE that the Receiver has fixed July 26, 2024, as the **BAR DATE**, or the last date for the timely submission of unsecured, non-priority claims against Rowboat. Your claim must be received by the Receiver on or before the Bar Date for you to participate in any distribution of the company's assets, unless the Receiver, in his sole discretion, extends the Bar Date.

PLEASE TAKE FURTHER NOTICE that this form, when completed and executed by you and returned to the Receiver shall constitute your Proof of Claim. Please attach legible copies of all invoices, statements, contracts or other evidence of your claim to this form when it is returned.

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PROOF OF CLAIM

**RE: ROWBOAT CREATIVE LLC
4200 WEST DIVERSEY AVENUE
CHICAGO, IL 60639**

Claim Amount: \$ _____

Company Name: _____

Address: _____

City, State, Zip: _____

Telephone: _____

Fax: _____

E-Mail: _____

By: _____

Print Name & Title: _____

Date: _____

Please complete and return this form to the Receiver of Rowboat Creative LLC, Case No. 24 CH 00720 Trust along with any documentation to substantiate your claim on or before the Bar Date of July 26, 2024 to the following address, facsimile number or email address:

MAIL TO:
Rally Capital Advisors, LLC
350 North LaSalle Drive
Suite 1100
Chicago, IL 60654

OR

FAX TO:
Claims Department
(312) 645-1976

OR

EMAIL TO:
claims@rallyllc.com

ATTN: Rowboat Creative LLC, Case No. 24 CH 00720

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